

Defendant's request for sanctions is denied as the notice of motion fails to identify every person, party, and/or attorney against whom the sanction is sought. Code Civ. Proc. § 2023.040. Plaintiff's request for sanctions is likewise denied.

5. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion for Attorneys' Fees and to Fix Prejudgment Interest

Plaintiff moves for an award of attorneys' fees against defendants in the amount of \$16,290 and for an order fixing prejudgment interest at \$31,379.42. Defendants oppose the motion.

Defendants' objections to portions of the declaration of counsel Young are overruled.

The threshold question is whether plaintiff is entitled to recover fees. This action is based on a written commercial lease agreement between the parties' predecessors in interest dated November 5, 2005 which includes an attorneys' fees provision:

22. ATTORNEY'S FEES. In case suit shall be brought for any breach of this Lease including without limitation unlawful detainer of the premises or for the recovery of any rent due under the provisions of this Lease, or because of the breach of any covenant herein contained on the part of Lessee to be kept or performed, the prevailing party shall be entitled to a reasonable attorney's fee which shall be fixed by the Court, or in any compromise or settlement such attorney's fee shall be deemed to have accrued on the commencement of such action and shall be paid whether or not

(Pltf's Exh. 2, ¶ 22.)

Plaintiff moved for summary judgment, which the court granted on December 8, 2025. (Ruling on submitted matter, Dec. 8, 2025.) On July 8, 2026, the court entered judgment for plaintiff as against defendant. Plaintiff is the prevailing party in this action. A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Plaintiff is therefore entitled to recover reasonable attorneys' fees.

The court must next address whether the \$16,290 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Kenrick Young. Counsel declares he has charged an hourly rate of \$220 to \$300 during the pendency of this case. However, a review of Exhibit 3 to the declaration of counsel Young reveals other attorneys who worked on the case—Dirk Chilcote and Nicholas Lazzarini, who have

been members of the State Bar since 2015 and 2008 respectively, according to publicly available information on the California State Bar’s website—as well as a paralegal identified only as “JS.” The fees requested for the paralegal are denied as no information is provided as to their training and experience. The court finds the hourly attorney rates of \$220 through \$300 to be reasonable for the attorneys given the length of time these individuals have been members of the California State Bar.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Young and Exhibit 3 thereto, which supports 62.7 hours incurred on this litigation. The court observes only one instance where the itemized time is insufficiently explained and a reduction of 0.2 hours is required, in addition to a reduction of 4 hours of paralegal time for the reasons discussed above. The court awards attorneys’ fees in the amount of \$15,830.

Plaintiff also requests prejudgment interest in the amount of \$31,379.42. While defendants point out that typically, prejudgment interest is part of the judgment rather than sought by way of motion, defendants point to no law so requiring. Moreover, when the court issued the judgment on July 8, 2026, it purposefully struck any interest to address it by way of this motion to afford defendants the opportunity to be heard. Accordingly, the court will reach the issue. “A person who is entitled to recover damages certain, *or capable of being made certain by calculation*, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day[.]” (Civ. Code, § 3287, subd. (a), emphasis added.) The evidence plaintiff presented in support of the motion for summary judgment included that default occurred on or about June 1, 2023. The lease agreement between the parties’ predecessors in interest dated November 5, 2005 specifies that the lessor has several rights in response to a lessee’s default, including the right to recover from lessee the amount of unpaid rent for the balance of the term. (Pltf’s Exh. 2, ¶ 17.) Accordingly, the damages were “capable of being made certain by calculation” at the time of the breach and Section 3287(a) applies. As to the rate of interest, no rate of interest is specified in the agreement of the parties; accordingly, interest shall accrue at a rate of 10 percent per annum following breach. (Civ. Code, § 3289, subd. (b).) Plaintiff is therefore entitled to prejudgment interest at the rate of 10% from the date of default (June 1, 2023) to the date judgment was entered (July 8, 2026). The court awards prejudgment interest in the amount of \$37,741.91.

While costs were not raised in this motion, a memorandum of costs was filed and served on February 27, 2026 requesting \$935 for filing fees and motion fees. A review of the court’s file reveals no motion to tax costs has been filed.

Based on the foregoing, the motion for attorneys’ fees is granted. Plaintiff is awarded attorneys’ fees of \$15,830 against defendants. Prejudgment interest is awarded in the amount of \$37,741.91. Plaintiff shall forthwith submit an amended proposed judgment consistent with this ruling.